

Permitting package would stabilize policy environment for data center power procurement

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【メール原文】

Provisions in the recently-released permitting package would raise energy costs allocated to new data centers but improve policy certainty for project|||||||

Quick take

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Permitting package would accelerate timelines and raise costs for data center power procurement

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What Happened

A bipartisan group of US senators released the text of a potential permitting reform package. A standalone section on ratepayer protections related to data center power consumption would set new operating conditions for data center power procurement in the US.

Our Take

The Senate will take up the legislation in the lame duck. The release of the final bill text effectively locks each side into their respective positions and sets up a Senate vote in the lame-duck session of Congress after the midterms. If the Senate passes the bill, that would likely be quickly followed by passage in the House—which has already passed the related SPEED Act—shortly after. The primary threat to the legislation is that Democrats may lose faith that the White House will stick to its commitments on allowing wind and solar projects, stalled by the Trump administration, to move forward. Past White House threats to revoke its concessions on this front after the midterms, as well as the House's relatively close margin on passage of the SPEED Act, are a word of caution.

The bill would encourage a state-level trend towards large load tariffs designed specifically for data centers. In particular, this package would amend the Federal Power Act to forbid the costs of investments necessary for new data centers to be distributed across other ratepayers. It also requires more financial assurances and deposits for projects before a utility moves forward with servicing them, and allows utilities to charge data centers at rates higher than other large industrial electricity consumers. These are provisions that many states are already moving towards within large load tariff structures, which would be emboldened by Federal backing.

These types of provisions will likely raise the all-in energy costs for new data centers, but will improve policy certainty for credible projects. This would address a major barrier for the industry. Ensuring that AI companies are footing the bill for rising electricity costs will assuage some local stakeholders who have opposed the data center buildout (see: [State data center restrictions won't slow US buildout](#) , 30 September 2026). Furthermore, federal actions around ratepayer protection provisions will narrow the policy differences between states with and without protections, reducing the incentive for AI companies

to arbitrage projects (although near-term power availability will still vary by state).

More broadly, improved certainty for new generation and transmission projects of all types will improve data centers' power procurement options. In the near-term, utilities are still constrained and interconnection queues are long; neither of those issues will be immediately resolved by the new package. But improved permitting certainty and expanded avenues to procure grid-supplied power will pave the way for the US AI buildout to continue despite recent policy volatility.

Herbert Crowther

Senior Analyst, Energy & Resources

+1 435.625.7886

crowther@eurasiagroup.net

Noah Daponte-Smith

Senior Analyst, United States

daponte-smith@eurasiagroup.net

Carisa Nietzsche

Senior Analyst, Geo-technology

+1 202.540.5127

nietzsche@eurasiagroup.net

Scott Bade

Senior Analyst, Geo-technology

+1 202.540.5140

bade@eurasiagroup.net

EG Energy, Climate & Resources

ecr@eurasiagroup.net

EG United States

unitedstates@eurasiagroup.net

EG Geo-technology

geo-technology@eurasiagroup.net

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